

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1005

By: Olsen

AS INTRODUCED

An Act relating to elections; amending 26 O.S. 2021, Section 7-114, which relates to proof of identity; modifying requirements; requiring creation of certain photo identification; directing collaboration with the Secretary of the State Election Board; clarifying applicability of requirements; permitting the Secretary of the State Election Board to promulgate rules; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 7-114, is amended to read as follows:

Section 7-114. A. Each person appearing to vote shall announce that person's name to the judge of the precinct and shall provide proof of identity, whereupon the judge shall determine whether the person's name is in the precinct registry. As used in this section, "proof of identity" shall mean a document that satisfies all of the following requirements:

1. The document shows the name of the person to whom the document was issued, and the name substantially conforms to the name in the precinct registry;

1        2. The document shows a photograph of the person to whom the  
2 document was issued;

3        3. The document includes an expiration date, which is after the  
4 date of the election in which the person is appearing to vote. The  
5 provisions of this paragraph shall not apply to:

6            a. an identification card that is valid indefinitely, or

7            b. an identification card issued by a branch of the armed  
8 services of the United States to a person who is a  
9 member of such branch or is retired therefrom; ~~and~~

10        4. The document was issued by the United States, the State of  
11 Oklahoma or the government of a federally recognized Indian tribe or  
12 nation-;

13        5. Provided, for any election conducted prior to January 1,  
14 2027, if the person presents a voter identification card issued by  
15 the appropriate county election board, such card may serve as proof  
16 of identity without meeting the requirements of paragraphs 2 and 3  
17 of this subsection; and

18        6. Provided, for any election conducted after January 1, 2027,  
19 each person appearing to vote as described in this subsection shall  
20 present proof of identity that meets the requirements of paragraphs  
21 1 through 4 of this subsection.

22        B. 1. No later than January 1, 2027, Service Oklahoma shall  
23 develop and make available a photo identification card that meets  
24

1 the requirements of subsection A of this section to serve as a proof  
2 of identity for voters.

3 2. The photo identification card described in this subsection  
4 shall be provided free of charge by Service Oklahoma to any  
5 registered voter who presents a voter registration card described in  
6 Section 4-113 or another document showing proof of voter  
7 registration. The voter shall affirm that they are a registered  
8 voter and do not possess a document that meets the requirements of  
9 paragraphs 1 through 4 of subsection A of this section.

10 3. The Chief Executive Officer of Service Oklahoma shall  
11 consult with the Secretary of the State Election Board to develop  
12 the photo identification card.

13 C. The requirements for proof of identity described in  
14 subsection A of this section shall apply to each voter appearing to  
15 vote at an in-person absentee voting site.

16 ~~B.~~ D. 1. If a person declines to or is unable to produce proof  
17 of identity, the person may sign a statement under oath, in a form  
18 approved by the Secretary of the State Election Board, swearing or  
19 affirming that the person is the person identified on the precinct  
20 registry, and shall be allowed to cast a provisional ballot in a  
21 manner consistent with the provisions of Section 7-116.1 of this  
22 title.

1        2. A provisional ballot cast by a voter who declines or is  
2 unable to produce proof of identity shall only be considered  
3 verified and approved for counting if:

- 4            a. the voter's name on the affidavit substantially  
5                conforms to the voter's name in the voter registration  
6                database, except as provided in paragraph 3 of this  
7                subsection,
- 8            b. the voter's residence address on the affidavit  
9                substantially conforms to the voter's residence  
10              address in the voter registration database, except as  
11              provided in paragraph 4 of this subsection,
- 12           c. the voter's date of birth matches the information in  
13              the voter registration database,
- 14           d. the voter's Oklahoma driver license number or the last  
15              four digits of the voter's Social Security number on  
16              the affidavit matches the information in the voter  
17              registration database. The provisions of this  
18              subparagraph shall not apply if the voter was not  
19              required to provide a driver license number or the  
20              last four digits of the voter's Social Security number  
21              at the time of registration, and
- 22           e. the provisional ballot meets the eligibility  
23              requirements set forth in Section 7-116.1 of this  
24              title.

1       3. A voter casting a provisional ballot as provided in this  
2 section who has legally changed his or her name, but has not updated  
3 the name on the voter registry, may note this fact on the affidavit  
4 and submit a form prescribed by the Secretary of the State Election  
5 Board to update his or her name. In such a case, and where the  
6 requirements of Section 4-117 of this title are satisfied, the  
7 provisional ballot shall be deemed to meet the requirements of  
8 subparagraph a of paragraph 2 of this subsection.

9       4. A voter casting a provisional ballot as provided in this  
10 section who has changed his or her address of residence, but has not  
11 updated the address on the voter registry, may note this fact on the  
12 affidavit and submit a form to update the address prescribed by the  
13 Secretary of the State Election Board. In such a case, and where  
14 the requirements of Section 4-117 of this title are satisfied, the  
15 provisional ballot shall be deemed to meet the requirements of  
16 subparagraph a of paragraph 2 of this subsection.

17       5. False swearing or affirming under oath shall be punishable  
18 as a felony as provided in Section 16-103 of this title, and the  
19 penalty shall be distinctly set forth on the face of the statement.

20       E. The Secretary of the State Election Board may promulgate  
21 rules or procedures to implement the requirements of this section.

22       SECTION 2. This act shall become effective November 1, 2025.

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24       60-1-10037       MJ       11/18/24  
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